

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 13
Honorable Daniel T. Nishigaya**

J. Long, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2240

DATE: September 12, 2025 TIME: 9:00 A.M.

**TO CONTEST A TENTATIVE RULING, YOU MUST CALL (408) 808-6856
BEFORE 4:00 P.M. ON THE DAY PRIOR TO THE HEARING.**

**You must also inform all other sides to the issue before 4:00 P.M. the day prior to the hearing
that you plan to contest the ruling. The Court will not hear argument, and the tentative ruling will be
adopted if these notifications are not made. (Cal. Rule of Court 3.1308(a)(1); Civil Local Rule 8.E.)**

LINE #	CASE #	CASE TITLE	RULING
LINE 1	24CV445868	Arthur Seals vs LifeMoves	Hearing: Demurrer Defendant's demurrer is unopposed. Failure to file opposition may be treated by the Court as a concession by the Plaintiff that the demurrer has merit. (See <i>Sexton v. Superior Court</i> (1997) 58 Cal.App.4th 1403, 1410; <i>Herzberg v. County of Plumas</i> (2005) 133 Cal.App.4th 1, 20.) The <i>Favela</i> action (24CV436819) is the earlier-filed action and is brought individually and on behalf of other aggrieved employees. Plaintiff here falls within the definition of "aggrieved employees" and also pursues individual and representative relief in the instant case. Additionally, the issues appear to be substantially the same. (See <i>Leadford v. Leadford</i> (1992) 6 Cal.App.4th 571, 574.) The demurrer is SUSTAINED, and this action shall be abated and stayed pending disposition of the earlier-filed action. The matter will be scheduled for a Status Conference re: Stay on July 17, 2026, at 10:00 a.m. in Department 13. Defendant shall prepare the final order within 10 days of the date of the hearing.